

Authority for Personal Data
 P.O. Box 93374, 2509 AJ The Hague
 Hoge Nieuwstraat 8, 2514 EL The Hague
 T 070 8888 500 - F 88 0712140
 autoriteitpersoonsgegevens.nl
 The Minister of Education, Culture and Science
 P.O. Box 16375
 2500 BJ THE HAGUE

Date

April 23, 2024

Our reference

z2023-02912

Your letter dated

July 4, 2023

Contact person

Your reference

39048289

Subject

Draft bill on free and safe education

Dear Mr. Dijkgraaf,

In your letter dated July 4, 2023, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the Act on Free and Safe Education (hereinafter: the draft).¹

The AP has several comments on the draft.

Main points

- The description of the duties of the confidential advisor is insufficiently defined.
- The responsibility for (adequate) aggregation is incorrectly placed with the competent authority.
- The draft is too non-committal regarding the measures to limit the processing of personal data.

Scope of the draft

¹ In response to the DPIA that was sent to the AP via email on March 28, 2024, at 09:40, the text of both the draft and the explanatory memorandum has been amended. The AP has based this advice on this amended text. The explanatory memorandum used the text sent via email on April 2, 2024, at 16:23. For the article-by-article explanation and for the text of the law, the text as sent via email on March 29, 2024, at 13:53 and 12:42, respectively, has been used.

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The draft aims to strengthen the safety policy of schools by clarifying the minimum requirements underlying good safety policy.² To this end, the draft includes several measures:

- The safety monitor (perception of safety at school) is expanded to include educational staff and is no longer limited to students.
- The competent authority is given a duty to register safety incidents and a reporting obligation (to the education inspectorate) for serious safety incidents.
- The obligation to consult with the confidential inspector in cases of sexual offenses is clarified and extended to situations where there is reason to suspect that a person entrusted with duties has

sexually intimidated a student.³

- Schools are required to appoint a confidential advisor and to join a national complaints committee that can issue binding judgments.
- The confidential advisor is granted the authority to process special personal data and personal data of a criminal nature and is subject to a confidentiality obligation that can be broken under certain circumstances.
- Schools are required to evaluate their safety policy annually and are obliged to use a number of specific information sources.

Legislative assessment

Duties of the confidential advisor and authority to process personal data

The authority of the confidential advisor to process (special) personal data is inextricably linked to and made dependent on the (legal) duties of the confidential advisor. The description of these duties reads, as far as relevant here: "The confidential advisor has at least the following duties: [...]". The use of the wording 'at least' indicates that the description of duties is explicitly not exhaustive, allowing for other duties beyond those that are explicitly described.⁴ What these may entail is not specified in the text of the law or the explanatory memorandum. This leaves the draft unclear about whether and when the confidential advisor may process personal data. This makes the application of this authority insufficiently predictable and the purpose of the processing insufficiently 'well-defined'.⁵ This also affects the confidentiality obligation that rests on the confidential advisor and thus on the possibilities to break it. This is also (partly) dependent on the 'duty' of the confidential advisor.

2 To this end, various education laws are amended in the draft.

3 The current obligation to consult is limited to a possible sexual offense. In consultation with the confidential inspector, it is then determined whether there is reasonable suspicion of a sexual offense and whether a report should be made (cf. pp. 7-8 of the explanatory memorandum for the draft).

4 The specifically described duties of the confidential advisor are:

- to receive, guide, and advise students and staff members and, if necessary, refer them to a professional assistance agency or helper.
- to assist parents, students, and staff members with a complaint about the competent authority or a staff member;
- to advise the competent authority, both upon request and unsolicited, about the safety policy at the school and the handling of complaints by the competent authority;
- to report annually on the execution of the aforementioned duties.
- to act as a point of contact for complaints about bullying and other undesirable behavior.

5 Article 6, third paragraph, of the GDPR and recital 41 of the GDPR preamble.

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The AP concludes that the legislation, whether or not with the help of delegation, must contain a comprehensive task description of the confidential advisor.

Registration and notification by the competent authority

According to the explanation accompanying the draft, the registration and notification obligation does not lead to the processing of personal data.⁶ The idea is that only a 'general description' of the incident is provided.⁷ Nevertheless, the draft contains, 'given the sensitive nature of the incidents that are registered or reported,' as a form of 'additional safeguard'⁸ for the competent authority a prohibition on processing personal data in this context.⁹ Thus, the draft seems to be of two minds; despite the premise that no personal data is processed, the (inherent) risk is acknowledged that (special) personal data may still be processed during a notification or registration. In this regard, it is important that the competent authority is required, without exception, to use the designations 'student', 'parent', 'staff

member', and 'third party' and must include the date, time, and location of the safety incident in a registration or notification.¹⁰ However, it cannot be ruled out in advance that the combination of these elements is still traceable to those involved in the incident. This obligation may come into conflict with the prohibition on processing personal data. The prohibition on processing personal data means that a (serious) safety incident may only be registered or reported in an anonymized manner, but this is not without risk. Anonymization only occurs when every possibility of identifying those involved is irrevocably excluded.¹¹ For this, the dataset must be sufficiently aggregated, which requires specific expertise and leads to complex considerations.

It is illustrative that the draft suffices with prescribing what a registration or notification 'must include at a minimum.'¹² The wording 'at a minimum' creates the possibility of including more data. The broader and more indefinite the data to be included, the greater the risk of traceability. Moreover, this creates uncertainty for those involved regarding which data about them will be registered and reported, and there is a risk that more (personal) data will be processed than necessary for the intended purpose.

The responsibility and risk for correctly aggregating registrations and notifications, and thereby ensuring the anonymity of those involved, are effectively placed with the competent authority. The AP is of the opinion that this responsibility should lie with the legislator and that they

6 Par. 6.2 (p. 18) explanatory memorandum accompanying the draft.

7 Par. 6.2 (p. 18) explanatory memorandum accompanying the draft.

8 Par. 6.2 (p. 18) explanatory memorandum accompanying the draft.

9 Art. 5c, fourth paragraph (Article I, under C), Art. 4e, fourth paragraph (Article II, under C), and Art. 6c, fourth paragraph (Article IV, under F) of the draft.

10 Art. 4e, third paragraph in conjunction with Article 4d, third paragraph (Article I, under C), Art. 6c, third paragraph in conjunction with Art. 6b, third paragraph (Article III, under C), and Art. 3.40b, third paragraph in conjunction with Art. 3.40a, third paragraph (Article IV, under F) of the draft.

11 Cf. p. 9 et seq. advice WP 216 on anonymization techniques. In this context, it is also important to critically examine whether the data to be registered and reported are truly necessary for their intended purpose.

12 Article 5b, third paragraph, introductory text (Article I, under C), Article 4b, second paragraph, introductory text (Article II, under C), and Article 3.40a, second paragraph, introductory text (Article IV, under F). It is at the discretion of the competent authority to provide more data.

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the competent authority must provide clarity in advance regarding when the anonymity of a report or registration is sufficiently guaranteed.

The AP concludes that the draft incorrectly places the responsibility for (sufficient) aggregation on the competent authority. This can be rectified by removing the prohibition on processing personal data from the draft and including precise criteria for adequate aggregation in (delegated) regulations.

Safety Monitor

The safety monitor assumes that no personal data is processed because the research into the safety perception of staff aims to obtain an aggregated overall picture. Nevertheless, the draft takes into account the possibility that personal data may still be processed, as the explanatory memorandum to the draft states that in the implementing regulation to be established, which will set further rules on how the monitor will take place, safeguards may be put in place, as necessary, to limit the processing of personal data.¹³

Aggregating personal data—which the draft aims to achieve—is an anonymization technique that, when applied correctly, results in the absence of personal data. Therefore, it is not about limiting the

processing of personal data. As noted earlier, aggregating personal data is not without risk and must therefore take place at a sufficiently high level.¹⁴

The AP concludes that the draft considers the possibility that personal data may be processed, but is too vague regarding the measures to limit the processing of personal data. It is therefore necessary to include in the draft that rules will be established in the implementing regulation that guarantee that the safety monitor indeed only provides an 'aggregated overall picture'.

Terminology

The draft uses the term 'criminal law personal data'. This terminology deviates from the GDPR, which refers to 'personal data concerning criminal convictions and offenses'.

The AP concludes that in the draft, the concept of 'criminal law personal data' does not correspond with the terminology from the GDPR. This requires adjustment of the draft.¹⁵

13 Par. 6.1 (p. 18) explanatory memorandum to the draft.

14 P. 9 et seq. advice WP 216 on anonymization techniques

15 The UAVG refers to 'personal data of a criminal nature' (and thus also deviates from the wording in the draft). Aligning with the UAVG terminology (Article 1 UAVG) would be unfortunate because the UAVG definition is broader than the GDPR definition in Article 10 GDPR and also includes 'personal data concerning a prohibition imposed by a court as a result of unlawful or disruptive behavior'. In a ruling by the Court of The Hague (ECLI:NL:GHDHA:2019:3539), it was established that the concept of personal data concerning criminal convictions and offenses in the sense of Article 10 GDPR is a Union law concept that must be interpreted autonomously. The GDPR therefore does not allow member states to provide their own, broader interpretation of that concept.

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Advising Caribbean Netherlands

The draft also contains amendments relating to BES legislation (Caribbean Netherlands). It is not for the AP to advise on the draft as far as it concerns the Caribbean Netherlands. The AP considers submitting the draft for advice to the Committee for the Supervision of Personal Data Protection BES, should this not have already been done.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority Personal Data,

Aleid Wolfsen

Chairman